deposit. The Engineer shall also have the right to recover from the contractor, any sum required estimated to be required for making good the loss or damage suffered by the Employer.

B. **Contractor's Superintendence** - The Contractor shall provide all necessary superintendence carrying out its operations and as long thereafter as the Employer may consider necessary for the pr fulfilling of the contractor's obligations under the contract. The contractor shall nominate a compe and authorized representative (contractor Representative) approved of by the Engineer which appr may at any time be withdrawn. The Contractor's representative shall give its whole to Superintendence of the operation The Contractor Representative shall receive. On behalf of Contractor, instruction from the Engineer which shall be deemed received by the Contractor

C. **Contract Performance Review and process**

1. **Management Meetings:**

A. Either or the Contractor may require the other to attend a management meeting. The business management meeting shall be to review the plans for remaining Operations and to deal with mat raised in accordance with any advice. The employer shall record the business of management with advice. The employer either at the management meeting or after the management meeting and state writing to all who attended the meeting.

B. The employer may instruct the contractor to rectify defects and deficiency in its operation s. Alternati the employer shall carry out the operation on its own and deduct the amount incurred in attendin such defaults from the next payment due to the operation . The deduction of such damages shall relieve the contractor from its obligations to carry out the operations, or from any other of its obligati and liabilities under the contract.

2. **Notwithstanding anything stated above-** if the employer is of the action of the Contractor is deeme an event of default of service and the events persist beyond one (1) day the employer shall be entitle invoke the security deposit and carryout the operations through a another contractor or departmenta The Employer shall then proceed as per Tender conditions.

3. **Liquidated Damages and penalties for O/M works-** The basis for applying penalties is to rest Contractor from deviating from disposing all raw/treated waste STPefficiency from the service area per fixed schedule and as per stipulations in the tender.

A. The contractor is also expected to carry out the instructions of the Engineer or its representative f time to time, maintain the system in accordance with good Operating practices attend to custo complaints, retrain from offerings operations without due authorization where so required and fol other requirements under this Contract.

B. The Contractor shall be subject to the following liquidated damages and penalties for its failure to ca out its operations as indicated below.

S.No.	Basis of penalty	Penalty Benchmark	Penalty Value
1	Failure to maintain PH /BOD /COD /TSS /Fecal coli form within prescribed limits Detected as per reports of daily samples tested in lab by the Employer and outlet quality to be achieved as per Tender provisions	Up to 2 Occurrence/month	1,000/-per Occurre
		2 to 5 Occurrence/month	5,000/-per Occurre
		5 to 10 Occurrence/month	1,0000/-per Occurr
		Above 10 Occurrence/month	Termination
		Samples tested by PCB/PCRI exceeding prescribed outlet parameters	25,000/- per Occur
2	Non-operating any working Equipment/Drive more than 4 hours except the Equipment/Drive under maintenance	more than 4 hours	1000/-per Drive h after permissible li 4 hours

3	Over Power Consumed The contractor has to guarantee the maximum Guaranteed Power Consumption For entire plant (When DG is used , the electricity consumption shall be determined as follows Electricity Consumption (KW hr)+1.10 times the Electricity Equivalent of Diesel Consumed (KWH)	for power increased beyond current base level based on Effluent Discharge Schedule on monthly basis	4.50/KW hr. of extra power consumed or @prevailing Tariffs applied by state electricity Authority whichever is higher
4	Inappropriate de-sitting of Sewers and clearing of silt in premises	Per Occurrence	1000 per Occurrence
5	Delay in recording of energy Meter Reading, Power failure time or Diesel Consumption	Per Occurrence	100 per Occurrence
6	Duty Staff not wearing uniform or it being dirty.	Per Occurrence	100 per Occurrence
7	Minimum Maintenance time will be 15 Days for any maintenance activity which is not responsible for poor quality of treated sewage.	Every day after splayed time of 15 days	15000/- Per Day
8	Any Maintenance works which are related to quality of treated sewage have to do within 24 hour with prior information / permission of Engineer in Charge (Verbal, Telephonic or any fasted mode	more than 24 hour	15000/- Per Hour
9	Damaged of Coarse Screen Bar/Conveyor Belt	01 Month	2000/- Per Day
10	Damaged of M.P.S. Pumps	15 Days	2000/- Per Day
11	Damaged of Fine Screen Bar / Conveyor Bar	01 Month	2000/- Per Day
12	Damaged of Ras Pumps/Sas Pumps	15 Days	1000/- Per Day
13	Damaged of Chlorine Booster Pump	7 days	1000/- Per Day
14	S.B.C. Poly Dosing Pumps	7Days	1000/- Per Day
15	Damaged of Air Blowers for digester	15 Days	1000/- Per Day
16	Damaged of Centrifuse pumps /Thickner feed Pumps	01 Months	1000/- Per Day
17	Damaged of Air Blower for C-Tech	01 Months	5000/- Per Day
18	Lighting System in Plant	2 days	5000/- Per Day
19	Damaged of Lab Equipments	7 Days	5000/- Per Day
20	Damaged of Scalan System	1 Week	5000/- Per Day

21	Damaged of Chloronator	1 week	2000/- Per Day

14. Intellectual Property & confidential Information-

The parties agree that all details plans manuals documentation specifications schedules progr reports calculations and other work relating to the facilities and /or Systems and the provisio operations pursuant to this Contract (hereafter referred to as proprietary Material) which have bee are hereafter written originated or made by any of them or any of their respective employees contractors or agents and by the persons related to the contractor in connection with this contract be owned by and be the property of the Employer the determination of information as propri Materials shall be made at the sole discretion of the Employer. The contractor shall have an irrevoc royalty-free non-exclusive license to use the proprietary material during the term of this contract fo purposes connected with fulfilling its obligations hereunder however this license under this con such license shall not continue after the suspension or termination of this contract or the discharge b contract of its duties hereunder .

15. Confidentiality-

The contractor shall cause the persons related to the operator not to without the prior written conse the Employer at any time divulge or disclose to any person or use for any purpose unconnected wit operations proprietary material under this contraction this shall not apply to information.

Already in the public domain otherwise than by breach of this contract.

Already to the possession of the receiving party before it was received from the office party in conne with this contract and which was not obtained under any obligation of confidentiality.

The contract shall whenever required take necessary steps to ensure that all persons employed under this contract comply with the Indian official secrets Act 1923 (XIX of 1923) and agree t applies to them and shall continue to apply even after completion of this contract.

No photographs of the Facilities or system or any part there of or equipment employed thereon sh taken or permitted by the contractor to be taken by any of its employees or any employees of its contractor without the prior approval of the Engineer in writing and no such photographs sh published or otherwise circulated without the approval of the Engineer in writing.

The Employer shall use its best efforts to ensure that the confidential proprietary information relat the Contractor is not made public However the Employer shall not be liable in any manner whatsoe case such information becomes public.

ssignment- The contractor shall not subcontract the whole of the operations or a substantia nereof Except where otherwise provided by the contract the contractor shall not subcontract any p e operations without the prior consent of the Engineer any such consent shall not relieve the cont om any liability or obligations under the contract and it shall be responsible forth acts default glects of any subcontractor its agents servants or workmen as fully as if they were the acts defa glects of the contractor its agents servants or workmen.

tractor shall not be required to obtain such consent for

provision of labour or

purchase of materials specified in the contract.

nt of a subcontractor having undertaken towards the contractor in respect of the work execu goods materials plant or operation supplied by such subcontractor any continuing obli ding for a period exceeding that the of the contract period

me after the expiration of such